

TENTATIVE RULING FOR MAY 14, 2026

Department R12 - Judge Kory Mathewson

Andres Cerrillo v. Alec Anthony Rosales – CIVRS2505389

Motion: Motion to Quash Defendant’s Deposition Subpoena for Production of Business Records and Request for Sanctions

Movant: Plaintiff Andres Cerrillo

Respondent: Defendant Alec Anthony Rosales

RULING: Plaintiff’s motion to quash the deposition subpoena to Health Net of California, Inc. is GRANTED IN PART, and LIMITED to documents from July 29, 2023 to the present that identify medical providers Plaintiff has seen relating to the following: neck, back, spine, head, shoulders, chest/abdomen, left arm and leg, right arm, neurological symptoms, dizziness, headaches, and sleep difficulties/insomnia. Billing records are LIMITED to those medical providers, on or after July 29, 2023, identified in the documents produced. Request for sanctions is DENIED.

Plaintiff - to provide Order(s) and give Notice.

Right of Privacy Related to Medical Information

In considering the *Hill* factors in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552., citing *Hill v. National Collegiate Athletic Assn* (1994) 7 Cal.4th 1, 35 (*Hill*). Plaintiff has a bona fide interest in the confidentiality of his medical information. In general, an individual’s right to privacy to information in medical records is “well settled.” (*Grafilo v. Wolfsohn* (2019) 33 Cal.App.5th 1024, 1034; *see also County of Los Angeles v. Superior Court* (2021) 65 Cal.App.5th 621, 641.)

Nonetheless, a party waives any privacy interest as to the claims asserted in litigation. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 842 (*Vison*) (“[A]n implicit waiver of a party’s constitutional rights encompasses only discovery directly relevant to the plaintiff’s claim and essential to the fair resolution of the lawsuit.”); *Britt v. Superior Court* (1978) 20 Cal.3d 844, 863-864 (*Britt*).) But plaintiff still has privacy rights as to physical and mental conditions unrelated to the claim or injury sued upon. (*Id.* at p. 864.) As such, compelled disclosure of all of Plaintiff’s doctors and billing records constitutes a serious invasion of his privacy related to physical and mental conditions unrelated to his claim and injuries at issue. Therefore, the Court must carefully balance Plaintiff’s right of privacy against the need for disclosure. (*Id.* at p. 855.)

Rosales’ subpoena seeks:

- Only those records from July 29, 2013, to the present that identify the medical providers seen by ANDRES CERRILLO DOB: [...], Member ID No. [...], including spreadsheets, health insurance claims forms, authorizations and referrals.” The request “also includes production of billing records, including amounts paid, adjusted, and/or written off for medical services provided to ANDRES CERRILLO DOB: [...] from July 29, 2023, to present.

The subpoena is not limited to the medical providers that have treated Plaintiff for the areas of his body that are at issue or to the billing associated with Plaintiff’s treatment following the

accident. The subpoena requires the production of documents revealing medical and billing information that is not relevant to any matter at issue and invades Plaintiff's right to privacy.

If Rosales seeks the names of Plaintiff's treating medical providers, it is unclear why he has not propounded an interrogatory to that effect.

Therefore, the Court grants Plaintiff's motion to quash in part, and modifies the subpoena to require only the production of documents identifying medical providers that Plaintiff has seen relating to his neck, back, spine, head, shoulders, chest/abdomen, left arm and leg, right arm, head and brain, and to issues relating to headaches, and sleep difficulties/insomnia. Billing records should be limited to those related to injuries sustained in the accident. As such, billing records should be on or after July 29, 2023, and only as to the medical providers identified in the produced documents.

Sanctions

Plaintiff requests sanctions in the amount of \$2,435.00. Sanctions are discretionary for this type of motion and under the circumstances are not warranted.

Dated: May 14, 2026

Judge Kory Mathewson

TENTATIVE RULING FOR MAY 14, 2026

Department R12 - Judge Kory Mathewson

Andres Valle v. San Antonio Regional Hospital – CIVRS2400091

Motion: Motion for Summary Judgment

Movant: Defendant San Antonio Regional Hospital

Respondent: Plaintiff Andres Valle (No Opposition)

RULING: Motion for Summary Judgment is DENIED, without prejudice.

Defendant - to provide Order(s) and give Notice.

The proof of service (POS) of the motion states it was electronically served. But nothing in the file demonstrates that Plaintiff consented to electronic service. Self-represented parties must manifest their affirmative consent to electronic service. (Code Civ. Proc., § 1010.6, subd. (c); Cal. Rules of Court, rule 2.251(b).) Such consent may occur by the self-represented party serving a notice on all parties and filing the notice with the Court. (*Ibid.*)

In addition, the mailing address listed on the POS is incorrect, although nothing is presented to demonstrate service occurred by mail, the POS lists the mailing address as 1291 E. 11th Street, #11, Upland CA 91786, where Plaintiff's mailing address is listed as 1291 E. **9th** Street, #11, Upland CA 91786.

Therefore, unless at the hearing Defendant can demonstrate proper service of the Motion for Summary Judgment (MSJ) on Plaintiff or that Plaintiff consented to electronic service, the requisite 81 days' notice, plus additional time depending on the method of service, is not demonstrated to have been provided.

Per case law, the statutory time for notice of an MSJ is mandatory. (*Urshan v. Musicians' Credit Union* (2004) 120 Cal.App.4th 758, 764; *McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 115.) Without the requisite service, the Court has to either deny the motion, without prejudice, or continue the motion for at least 81 days for the Hospital to provide proper notice. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1268.)

Separately this issue with service also raises the propriety of the Court's order deeming RFAs admitted. Service of the RFA discovery and the RFA motion also occurred by electronic service. This puts in issue whether the Court should, on its own motion, reconsider its ruling deeming the RFAs admitted given the issue with service. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108.) If Plaintiff did not receive proper service of the RFAs or motion to have them deemed admitted, then Plaintiff's due process rights are implicated. The Court on its own motion will seek to remedy its own error if it believes it has done so.

Dated: May 14, 2026

Judge Kory Mathewson